

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008259

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: ATER IMRAN

vs.

DEFENDANT: AMERICAN HONDA
MOTOT CO., INC.

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL ANSWERS TO
INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM
2) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM
3) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM
4) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY
FACILITATOR PROGRAM

RULING

On Calendar of Defendant’s motions to compel answers, admissions, and answers to interrogatories.

Pursuant to Marin County Rule, Civil 2.13B, on July 13, 2026, Robert James Begley, Esq. was appointed to preside as Discovery Facilitator to assist with the motions. The Court has not received a Declaration of Non-Resolution from either party, in particular *the moving party*, within five court days prior to the hearing on the motion, as required by MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing but also requires that “[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party’s contentions.***” (MCR Civ 2.13H(1), emphasis added.)

The court received a declaration from Michael Thomas, Esq, on behalf of the Plaintiff advising that Plaintiff had complied with the discovery by serving supplemental responses. No other information was provided by the Defendant.

The Court concludes that this discovery matter has been or is being resolved by the facilitator. The motion is therefore ordered **OFF CALENDAR**. (MCR Civ 2.13H(2).) Should the parties fail to reach resolution through the facilitator, either party may request (by ex parte application) that the Court re-set the motion for an expedited hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0009726

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: SUZANNE CREEKMORE

vs.

DEFENDANT: TOWN OF TIBURON, ET
AL

NATURE OF PROCEEDINGS: 1) DEMURRER
2) DEMURRER

RULING

I. Background

Plaintiff Suzanne Creekmore (“Plaintiff”) brings this action against the Town of Tiburon (“Tiburon”) and Muchmore Than Consulting LLC (“MTC”) alleging numerous violations of the California Fair Employment and Housing Act (“FEHA”) during her employment and in her termination. Plaintiff alleges that Tiburon and MTC were joint employers of Plaintiff, with Tiburon being Plaintiff’s direct or general employer and MTC being Plaintiff’s indirect or special employer. (Complaint ¶8.)

Plaintiff’s complaint includes 12 causes of action, all of which are directed at Tiburon. MTC is named in eight of the causes of action.

At present, both Tiburon and MTC demur to all of the causes of action directed against them.

II. Legal Standard

“... A general demurrer will lie where the complaint “has included allegations that *clearly* disclose some defense or bar to recovery.” A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law.” (*Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 288-289, citations omitted.)